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June 14, 2017					
FEDERAL MARITIME COMMISSION					

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INFORMAL DOCKET NO. 1954(F)

TAYLORS RESOURCES, INC. (USA) d/b/a BRIDGEWATER LANDING, INC. (USA)

v.

MITSUMI O.S.K. LINES, LTD.

ORDER ON COMPLAINANT'S REQUEST TO EXTEND TIME TO REPLY

On May 4, 2017, an order was issued requiring the parties to supplement the record. *Taylor's Resources Inc (USA) d/b/a Bridgewater Landing Inc (USA) v. Mitsui O.S.K. Lines Ltd.*, FMC No. 1954(F) (ALJ May 4, 2017) (Order to Supplement the Record). After an extension, the parties' replies to the other party's supplement were due June 7, 2017. On June 6, 2017, complainant Taylor's Resources Inc (USA) d/b/a Bridgewater Landing Inc (USA) (Bridgewater) filed a request to extend by an additional fourteen days the date for it to respond to respondent Mitsui O.S.K. Lines Ltd.'s (Mitsui) supplement. Mitsui opposes the additional extension.

At the request of the undersigned, the parties appeared by telephone on June 13, 2017. A court reporter attended the conference and will produce a transcript.

Bridgewater seeks additional time to obtain evidence supporting its contention that container MOLU0108835 at issue in this proceeding was not transported from Xingang, China, to Hong Kong as claimed by Mitsui. To the extent this claim is based on perceived inconsistencies regarding the date Mitsui claims container MOLU0108835 was shipped on board to be transported from Xingang, China, to Hong Kong, Bridgewater agrees that the date "11-3-2015" on MOL waybill MOLU11026857343 (MOL-107) refers to March 11, 2015. Bridgewater also contends that the photograph of the closed container filed by Mitsui (MOL-026) was taken in Xingang, China, not Hong Kong, and states that it has requested an independent third party in Xingang to provide verification on this point. It seeks addition time to obtain that verification.

During the conference, the undersigned took the opportunity to take testimony from two Bridgewater employees – John Herbst and Kerri Keith – and to ask for clarification on certain points

from the representative for Bridgewater and counsel for Mitsui. Mitsui stated that it has an additional document proving that the container was transported to Hong Kong that it would serve and file. This document was filed after the conference.

In response to Bridgewater's request for extension, the record will remain open until June 23, 2017, for Bridgewater to submit additional evidence regarding the location of the photograph.



Clay G. Guthridge
Administrative Law Judge